



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 8 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10382
(FIRST REVISION)

EXPIRATION DATE: December 31, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Zeneca Inc.
Wilmington, DE
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain hazardous materials, described in paragraph 6 of this exemption in DOT Specification 105S300W tank car tanks. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.3a, 173.245(a).
5. BASIS: This exemption is based on the application of Zeneca Inc. dated November 17, 1997, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Ethyl phosphonothioic dichloride, anhydrous	6.1	NA2927	I

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packagings prescribed are DOT Specification 105S300W tank car tanks.
- b. Tank car tanks are equipped with safety relief valves meeting A8.06 of the Association of American Railroads Specifications for Tank Cars.
- c. Each DOT Specification 105S300W tank car shall be equipped with a thermal protection system that meets the requirements of 49 CFR 179.18 and a tank head puncture resistance system that meets the requirements of 49 CFR 179.16.

8. SPECIAL PROVISIONS.

- a. Tank car tanks must be marked "DOT-E 10382" in letters at least 4 inches high and 0.25 inches in width on a contrasting background above the DOT specification number.

Additionally, each tank car must be marked "INHALATION HAZARD" in letters at least four inches high on a contrasting background in close proximity to the required placards.

- b. This exemption serves as a special packaging approval under the provisions of 49 CFR 173.3.
- c. In addition to the requirements of 49 CFR 171.15 and 171.16, the Exemptions Branch, Office of Hazardous Materials Exemptions and Approvals (OHMEA) must be notified of any incident involving damage to the packaging or loss of contents of materials shipped under this exemption.
- d. The Exemptions Branch, OHMEA shall be advised of the causes of the incident and any remedial action taken, as a result of the incident as soon as practical after its occurrence.
- e. The Exemptions Branch, OHMEA must be advised annually, within 30 days after the end of the calendar year, of the shipping experience of the material covered by this exemption. Failure to comply may result in the immediate suspension of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: None required as a condition of this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Ann Mazzullo
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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